

23STCV31362 23STCV31362

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DEMURRER

WITHOUT MOTION

The Court tenders

the following tentative decision in the matter Jeffry Wilcox v. City of Los Angeles, et al., Los Angeles County Superior Court case number 23STCV31362, set for hearing on September 9, 2026. Cross-Defendant Blue Line Plumbing, Inc. (BLP) demurs to the Cross-Complaint (CC) filed by the City of Los Angeles (the City). The City has not filed an opposition. BLP's demurrer is sustained. The City is granted 20 days' leave to amend.

A. Legal Standard

A demurrer is

sustained where "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., 430.10, subd. (e).) "A demurrer tests the legal sufficiency of the factual allegations in a complaint." (Yalung v. State (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint's legal sufficiency, a court will treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law. (Esparza v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 552.) It is well settled that a "demurrer lies only for defects appearing on the face of the complaint[.]" (Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) "We not only treat the demurrer as admitting all material facts properly pleaded, but also give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Quelimane Co. v. Stewart Tit. Guaranty Co. (1998) 19 Cal.4th 26, 38.) For purposes of ruling on a demurrer, the complaint

must be construed liberally by drawing reasonable inferences from the facts pleaded. (*Wilner v. Sunset Life Ins. Co.* (2000) 78 Cal.App.4th 952, 958.)

When ruling

on a demurrer, a court may only consider the complaint's allegations or matters which may be judicially noticed. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations pleaded or the difficulty a plaintiff may have in proving his allegations. (*Ion Equipment Corporation v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer is properly sustained only when the complaint, liberally construed, fails to state facts sufficient to constitute any cause of action. (*Kramer v. Intuit Inc.* (2004) 121 Cal.App.4th 574, 578.)

The Court

may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The Court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court. (*Id.*, § 436, subd. (b).)

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (*Id.*, § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (*Id.*, § 437.)

When a

demurrer is sustained or a motion to strike granted, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d at p. 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (*Reed v. Norman* (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

BLP demurs to the City's entire CC on the grounds that it is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) Demurrers

for uncertainty are disfavored. Courts are to only grant them if the pleading is so incomprehensible that a defendant cannot respond, considering that ambiguities can be clarified in discovery. (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.) Complaints must contain a “statement of the facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., § 425.10, subd. (a)(1).) Additionally, each cause of action should be numbered and identify the parties against whom it is stated. (Rules of Court, rule 2.112.)

Here, the City’s CC contains bare-bones allegations against all Cross-Defendants, with BLP having been named as a Roe after the CC’s filing. The City’s first cause of action for indemnification alleges that it is entitled to complete indemnity from BLP. (CC ¶ 7.) Its second cause of action states that BLP was responsible for the injuries suffered by Jeffry Wilcox (Plaintiff). (Id. ¶ 8.) And its third cause of action states that an actual controversy exists between it and BLP as specified in Plaintiff’s complaint. (Id. ¶ 9.) None of these allegations provide any detail as to how BLP is responsible for Plaintiff’s injuries in a way that supports indemnification, apportionment of fault, or declaratory relief. Indeed, the CC does not mention any conduct by BLP whatsoever. The City offers no argument in opposition. Thus, the Court finds the pleading to be so incomprehensible as to make it impossible for BLP to respond. Accordingly, BLP’s demurrer is sustained. The City is granted 20 days’ leave to amend.

Conclusion:

BLP’s demurrer is sustained. The City is granted 20 days’ leave to amend.